

2011

M B A

1st Semester Examination

BUSINESS LEGISLATION

PAPER—MBA-105

Full Marks : 100

Time : 3 Hours

The figures in the right-hand margin indicate full marks.

Candidates are required to give their answers in their own words as far as practicable.

Illustrate the answers wherever necessary.

Write the answers to Questions of each Half in separate books.

(First Half)

(Marks : 50)

1. Answer any four questions :

5×4

- (a) Distinguish between 'rule of Law' and 'rule by Law'.
- (b) Make a distinction between void and illegal contract.

(Turn Over)

- (c) What are the 'goods' under the Sale of Goods Act, 1930 ?
- (d) What do you mean by negotiable instruments ?
- (e) Discuss relationships between Law and Society.
- (f) Define 'Agent'. Explain how agency is created by estoppel and in case of necessity.

2. Answer any two questions :

10×2

- (a) What are implied conditions under the Sale of Goods Act, 1930 ?
- (b) Who is a holder in due course ? What are his rights ?
- (c) Define Contract. If Indemnity and Contract of Guarantee. Distinguish between these two.

[Internal Assessment : 10 Marks]

(Second Half)**(Marks : 50)****3. Answer any four questions :****5×4**

- (a) Write about the Powers of Inspector in W.B. Shops and Establishments Act.
- (b) What are the rights of a patentee as per The Patents Act.
- (c) Who may be appointed as the Chairman of Copyright Board and what is the position of Registrar in the Copyright Board as per Copyright Act.
- (d) Write about 'trade mark' according to Trade Mark Act.
- (e) Can a minor become a partner in Partnership Firm.
- (f) Write about the duties of a subscriber in Information Technology Act.

4. Answer any two questions :**10×2**

- (a) Who are the authorities to impose penalties as per Consumer Protection Act. Write about their powers.

(b) Define Partnership. Distinguish between Partnership business and Joint Hindu Family Business, Partnership and Club, Partnership and Co-ownership.

(c) Write briefly on the following (any two) : 5×2

- (i) Shop ;
- (ii) District Forum ;
- (iii) Appointment of Registrar and other officers as per the Trade Marks Act.
- (iv) Who are entitled to apply for Patents ?
- (v) Computer.

[Internal Assessment : 10 Marks]
